EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

# DECISION

Application no. 58268/10
Arzu YILDIRIM and Others against Turkey
and 2 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 8 December 2015 as a Committee composed of:

Paul Lemmens, *President,*
Ksenija Turković,
Jon Fridrik Kjølbro, *judges,*

and Abel Campos, *Deputy Section Registrar,*

Having regard to the above applications lodged on the dates indicated in the appendix,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by Mr M. İriz, a lawyer practising in İstanbul. The Turkish Government ("the Government") were represented by their Agent.

Relying on Articles 6, 11 and 13 of the Convention, the applicants alleged that they were given a disciplinary penalty for taking part in a demonstration and complained further of a lack of a domestic remedy to challenge the impugned disciplinary measures.

On 5 August 2015 and 17 August 2015 the Court received friendly settlement declarations signed by the parties under which the applicants agreed to waive any further claims against Turkey in respect of the facts giving rise to these applications against an undertaking by the Government to pay *ex gratia* to each of them 500 euros (EUR) to cover pecuniary and

non-pecuniary damage and EUR 5,300 for costs and expenses, which will be converted into the national currency of the respondent State at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

## THE LAW

Given that the applications at hand concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of the Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

*Decides* to join the applications;

*Decides* to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 7 January 2016.

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|---|---|
| Abel Campos | Paul Lemmens |
| Deputy Registrar | President |

# APPENDIX

| No | Application No | Lodged on | Applicant<br>Date of birth<br>Place of residence | Represented by |
|---|---|---|---|---|
| 1. | 58268/10 | 01/07/2010 | **Arzu YILDIRIM**<br>1973<br>İstanbul<br><br>**Meryem DURDU**<br>10/06/1974<br>İstanbul<br><br>**Sevinç İLDEŞ**<br>01/06/1972<br>İstanbul<br><br>**Veysel GENÇ**<br>09/11/1964<br>İstanbul<br><br>**Fikret BEKTAŞ**<br>06/08/1973<br>İstanbul<br><br>**Gonca GÖNEN**<br>25/04/1983<br>İstanbul<br><br>**Nurten AYDIN**<br>15/05/1983<br>İstanbul<br><br>**Özer UZUN**<br>11/04/1976<br>İstanbul<br><br>**Zehra AYGÜL**<br>28/03/1967<br>İstanbul | Metin İRİZ |

| No | Application No | Lodged on | Applicant<br>Date of birth<br>Place of residence | Represented by |
|---|---|---|---|---|
| | | | **Nursel EYİ KADIOĞLU**<br>13/10/1965<br>İstanbul<br><br>**Tarık Tunay ÇETİNER**<br>01/06/1970<br>İstanbul | |
| 2. | 60913/10 | 31/07/2010 | **Fikret TORUN**<br>06/03/1961<br>İstanbul | Metin İRİZ |
| 3. | 61939/10 | 31/07/2010 | **Gülşen ÇELEBİ**<br>25/12/1967<br>İstanbul<br><br>**Ayşe ÇOLAK**<br>12/04/1970<br>İstanbul<br><br>**Aynur AYGÜNOĞLU VARDAR**<br>15/08/1966<br>İstanbul<br><br>**Ali Rıza ÇAKMAK**<br>11/03/1960<br>İstanbul<br><br>**İlhan ERDOĞAN**<br>01/03/1964<br>İstanbul<br><br>**Oya KARABAŞ**<br>10/03/1979<br>İstanbul | Metin İRİZ |

| No | Application No | Lodged on | Applicant<br>Date of birth<br>Place of residence | Represented by |
|---|---|---|---|---|
| | | | **Çiğdem İSTANBULLU**<br>18/12/1975<br>İstanbul<br><br>**Kemal YÜKSEL**<br>30/07/1952<br>İstanbul<br><br>**Dilek YAŞİN**<br>26/05/1977<br>İstanbul<br><br>**Elif GÜMRAH**<br>29/01/1980<br>İstanbul<br><br>**Ayşe Sümran KANBUR**<br>28/05/1959<br>İstanbul<br><br>**Nurcan KARAHAN ÇAKIR**<br>02/09/1979<br>İstanbul<br><br>**Gökhan ÖZÇELİK**<br>05/01/1979<br>İstanbul<br><br>**Arzu ÖZGÜL ŞAHBAZ**<br>18/02/1977<br>İstanbul<br><br>**Hülya KOÇKAN**<br>01/06/1973<br>İstanbul | |

| No | Application No | Lodged on | Applicant<br>Date of birth<br>Place of residence | Represented by |
|---|---|---|---|---|
| | | | **Tülay MIRATKAN CAMKIRAN**<br>20/11/1983<br>İstanbul<br><br>**Özlem VARLIK KÖSEDAĞ**<br>01/06/1972<br>İstanbul<br><br>**Sevda POLAT**<br>06/05/1967<br>İstanbul<br><br>**Nevin TUNÇ**<br>20/08/1964<br>İstanbul<br><br>**Sevim TANER**<br>20/11/1982<br>İstanbul<br><br>**Nurdan KANBUR KILIÇ**<br>15/03/1970<br>İstanbul<br><br>**Sema TİMUR**<br>03/09/1978<br>İstanbul<br><br>**Halime KUSUN**<br>01/03/1983<br>İstanbul<br><br>**Nilüfer USLU**<br>26.09.1983<br>İstanbul | |

| No | Application No | Lodged on | Applicant<br>Date of birth<br>Place of residence | Represented by |
|---|---|---|---|---|
| | | | **Mustafa ARSLAN**<br>03/01/1982<br>İstanbul<br><br>**Tacettin KARACAN**<br>01/11/1966<br>İstanbul<br><br>**Teyfik Vehbi KOÇKAN**<br>24/03/1972<br>İstanbul<br><br>**Hasan BÖLÜKBAŞI**<br>01/01/1956<br>İstanbul<br><br>**İbrahim EVİN**<br>01/01/1966<br>İstanbul<br><br>**Yasin BOZKOYUN**<br>17/04/1979<br>İstanbul<br><br>**Aşkın ÇELİK**<br>18/09/1979<br>İstanbul<br><br>**Fevzi YILDIRIM**<br>09/05/1983<br>İstanbul<br><br>**Ayhan MENGÜŞ**<br>10/03/1984<br>İstanbul<br><br>**Özkan GÜL**<br>08/09/1982<br>İstanbul | |

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|---|---|---|---|---|
| | | | **Nurten MERCAN**<br>10/02/1966<br>İstanbul<br><br>**Ayşe AYYILDIZ**<br>08/05/1976<br>İstanbul<br><br>**Sitar KESER**<br>18/10/1977<br>İstanbul<br><br>**Berrak GOLAL**<br>17/09/1976<br>İstanbul<br><br>**Bahar KAZIK**<br>04/11/1982<br>İstanbul<br><br>**Aynur NECİP SÜNNETÇİOĞLU**<br>03/12/1979<br>İstanbul<br><br>**Günül KAYA**<br>01/02/1981<br>İstanbul<br><br>**Kadriye KESER**<br>25/10/1980<br>İstanbul<br><br>**Olcay YAŞAR**<br>07/01/1980<br>İstanbul<br><br>**Bülent ÇELEBİ**<br>15/02/1974<br>İstanbul | |

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|---|---|---|---|---|
| | | | **İlker YILMAZ**<br>20/03/1973<br>İstanbul<br><br>**Neşe KUL**<br>05/12/1979<br>İstanbul<br><br>**Birgül AKBABA**<br>01/05/1983<br>İstanbul<br><br>**Hicran GENÇ**<br>07/09/1973<br>İstanbul<br><br>**Figan AKBAYIR**<br>01/03/1976<br>İstanbul<br><br>**Esma ARĞAL**<br>28/10/1967<br>İstanbul<br><br>**Meral HALICI**<br>29/09/1975<br>İstanbul<br><br>**Selime ÇAVUŞOĞLU**<br>29/04/1958<br>İstanbul<br><br>**Mustafa Kemal ÖZCAN**<br>22/04/1963<br>İstanbul<br><br>**Kablan HANSU**<br>09/11/1958<br>İstanbul | |

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|---|---|---|---|---|
| | | | **İsa ALTUNTAŞ**<br>26/06/1955<br>İstanbul<br><br>**Fevzi LAÇİN**<br>01/03/1947<br>İstanbul<br><br>**Gülüstan AKKOYUN**<br>16/04/1964<br>İstanbul<br><br>**Şenay AKYOL GÖLBAŞ**<br>09/12/1971<br>İstanbul<br><br>**Aslı Kader AYDOĞAN AKER**<br>12/01/1980<br>İstanbul<br><br>**Güzin KAYNAR**<br>06/01/1963<br>İstanbul<br><br>**Tolga BOZTOPRAK**<br>09/02/1970<br>İstanbul<br><br>**Gül ÖNCÜ**<br>19/12/1970<br>İstanbul<br><br>**Sunay YÜCEL**<br>21/07/1983<br>İstanbul | |

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|---|---|---|---|---|
| | | | **Nursen ÇELİK SELÇUK**<br>02/05/1973<br>İstanbul<br><br>**Mustafa Ufuk YUMRUOĞLU**<br>01/03/1975<br>İstanbul<br><br>**Hamza ÖRBEYİ**<br>14/10/1963<br>İstanbul<br><br>**Nuray SARIKAYA**<br>10/08/1976<br>İstanbul<br><br>**Bedran YOLOĞLU**<br>20/02/1978<br>İstanbul<br><br>**Seval ZEYDANLI**<br>17/07/1967<br>İstanbul<br><br>**Aliye BOZTEPE**<br>04/11/1972<br>İstanbul<br><br>**Müge ONURSAL**<br>29/12/1980<br>İstanbul<br>**Dudu SÖYLER**<br>22/07/1962<br>İstanbul<br><br>**Yusuf KALKAN**<br>15/07/1977<br>İstanbul | |

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|---|---|---|---|---|
| | | | **Saadet ORBEYİ PEKTAŞ**<br>01/01/1980<br>İstanbul<br><br>**Ozan YATIK**<br>01/04/1977<br>İstanbul<br><br>**Ayla TÜYSÜZ**<br>20/09/1958<br>İstanbul<br><br>**Gönül DEMİRTAŞ**<br>17/07/1970<br>İstanbul<br><br>**Azim ŞAMİLOĞLU**<br>01/01/1960<br>İstanbul<br><br>**Özlem TOLU**<br>20/12/1971<br>İstanbul<br><br>**Hayri BİÇER**<br>03/01/1954<br>İstanbul<br><br>**Ergül KÖSE**<br>02/04/1970<br>İstanbul<br><br>**Serap GÜNYAKTI**<br>01/08/1979<br>İstanbul<br><br>**Talat ÇERİBAŞ**<br>01/01/1956<br>İstanbul | |

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|---|---|---|---|---|
| | | | **Sultan PARILTI**<br>04/01/1966<br>İstanbul<br><br>**Elif KARAHASANOĞLU**<br>09/08/1981<br>İstanbul | |